IN THE INDUSTRIAL COURT OF MALAYSIA

CASE NO.: 12(5)/4-1212/23

BETWEEN

ISHANRAJ A/L CHANDRA SEKARAN

AND

PALM-OLEO (KLANG) SDN BHD

AWARD NO.: 1909 OF 2025

BEFORE	**: Y.A. PUAN CHOW SIEW LIN - CHAIRMAN**
VENUE	**:** Industrial Court of Malaysia, Kuala Lumpur
DATE OF REFERENCE	**:** 06.07.2023.
DATE(S) OF MENTION	**:** 09.08.2023, 16.01.2024 & 18.09.2024.
DATE(S) OF HEARING	**:** 02.10.2024, 23.04.2025, 06.05.2025, 16.05.2025 & 24.06.2025.
WRITTEN SUBMISSION (CLAIMANT)	**:** 27.08.2025 & 23.09.2025.
WRITTEN SUBMISSION (COMPANY)	**:** 28.08.2025 & 12.09.2025.
REPRESENTATION	**:** Mr. Aravind Raj T Paramasivam and Ms. Atifah Binti Muhammad Messrs. Aravind, Atifah & Rajvin - Counsel for the Claimant Mr. R.M. Murali Messrs. Pathma Raj Ramasamy & Co - Counsel for the Company

REFERENCE:

This is a reference from the Director General of Industrial Relations Malaysia pursuant to *Section 20(3) of the Industrial Relations Act 1967 ("the Act")* in respect of the dismissal of **ISHANRAJ A/L CHANDRA SEKARAN** ("the Claimant") by **PALM-OLEO (KLANG) SDN BHD** ("the Company") on 19th January 2023.

AWARD

[1] This Court has considered all the notes of proceedings, documents, cause papers, submissions and bundles of authorities in handing down this Award namely:-

(i) The Claimant's Statement of Case dated 10.11.2023 ("**SOC**");

(ii) The Company's Statement in Reply dated 01.12.2023 ("**SIR**");

(iii) The Claimant's Rejoinder dated 08.01.2024 ("**Rejoinder**");

(iv) The Claimant's Bundle of Documents ("**CLB-1**");

(v) The Company's Bundle of Documents ("**COB-1**");

(vi) The Company's Bundle of Documents 2 ("**COB-2**");

(vii) The Claimant's Witness Statement (Ishanraj A/L Chandra Sekaran) dated 24.06.2025 ("**CLWS-1**");

(viii) The Company's Witness Statement (Kamsiah Binti Musa) dated 23.04.2025 ("**COWS-1**");

(ix) The Company's Witness Statement (Nurul Nadia Binti Abdul Nasir) dated 23.04.2025 ("**COWS-2**");

(x) The Company's Witness Statement (Kunalan A/L Velayutan) dated 23.04.2025 ("**COWS-3**");

(xi) The Company's Witness Statement (Teoh Swee Peng) dated 23.04.2025 ("**COWS-4**");

(xii) The Company's Witness Statement (Boon Yen Fei) dated 06.05.2025 ("**COWS-5**");

(xiii) The Company's Witness Statement (Azman Bin Mohd Daud) dated 06.05.2025 ("**COWS-6**");

(xiv) The Claimant's Written Submission dated 26.08.2025 ("**Claimant's Submission**") and Claimant's Bundle of Authorities ("**CL BOA-1**");

(xv) The Claimant's Submission in Reply dated 16.09.2025 ("**Claimant's Reply**") and Claimant's Additional Bundle of Authorities ("**CL BOA-2**");

(xvi) The Company's Written Submissions dated 19.08.2025 ("**Company's Submission**") and Company's Bundle of Authorities ("**CO BOA-1**");

(xvii) The Company's Written Submissions in Reply dated 11.09.2025 ("**Company's Reply**") and Company's Additional Bundle of Authorities ("**CO BOA-2**"); and

(xviii) The Notes of Proceedings dated 23.04.2025, 06.05.2025, 16.05.2025 and 24.06.2025.

BRIEF FACTS

[2] The Claimant joined the Company on 02.03.2015 as Storekeeper I, Warehouse (Staff Grade SII). He continued his employment with the Company until termination of his employment without notice effective from 22.01.2023 on ground of misconduct.

[3] The Claimant's last drawn monthly basic salary was RM4,161.00 at the time of his termination.

THE COMPANY'S PLEADED CASE

[4] The Company pleaded in its SIR, *inter alia*, as follows:

(a) The Company averred that the increments and bonuses were paid to all employees and in accordance to the Collective Agreement subsisting at the material time. The Company further averred that the Claimant was a very average performer;

(b) The Company contended that the task of driving fork lift was stated in the Company job advertisement for the Claimant's position dated 2.8.2014 and the Claimant applied for the position shortly thereafter and attended interview on 6.11.2014. The Claimant was aware of the requirement to handle forklift at the time he applied for the position and he was duly trained internally on the job and was also formally trained in handling the forklift on 14.5.2018;

(c) The Company further averred that the Claimant was raising these issues of being overburdened, poor health and unable to concentrate at work as an afterthought. Claimant's absences usually occurred after his off day and rest day as such the absences due to being overworked is unsustainable;

(d) The Claimant was issued with a show cause letter dated 1.12.2022 ("the 1st Show Cause Letter") for four (4) serious misconducts involving tardiness, failure to palm-in (sign-in) attendance, unauthorised absences. The Claimant was then issued with a second show cause letter dated 15.12.2022 ("the 2nd Show Cause Letter") for allegedly calling out the Human Resources Executive as "Stupid" more than twice and pointing towards her when she was tasked to deliver the first show cause letter to the Claimant. The Claimant had replied both the show cause letters vide letters dated 18.12.2022 (the Claimant's 1st Reply") and 15.12.2022 (the Claimant's 2nd Reply");

(e) The Company framed 5 charges against the Claimant and the charges are reproduced verbatim here in its original form for ease of reference:

"***Pertuduhan Pertama***

Anda telah dilaporkan datang lewat dan tidak mematuhi jadual kerja. Dimana jadual berkerja anda adalah bermula dari 8.30am sehingga 5.45pm. Butiran Tarikh-tarikh yang anda telah dilaporkan lewat adalah seperti jadual dibawah :-

No	*Tarikh*	*Masa Masuk*	*Masa Lewat*
1.	*11/10/2022*	*8.45am*	*15 minit*
2.	*14/10/2022*	*8.33am*	*3 minit*
3.	*17/10/2022*	*8.39am*	*9 minit*
4.	*19/10/2022*	*9.57am*	*1 jam 27 minit*

5.	*21/10/2022*	*8.31am*	*1 minit*
6.	*25/10/2022*	*8.31am*	*1 minit*
7.	*27/10/2022*	*9.55am*	*1 jam 25 minit*
8.	*31/10/2022*	*1.29pm*	*4 jam 59 minit*
9.	*1/11/2022*	*8.34am*	*4 minit*
10.	*3/11/2022*	*8.33am*	*3 minit*
11.	*15/11/2022*	*8.33am*	*3 minit*
12.	*17/11/2022*	*9.16am*	*46 minit*
13.	*21/11/2022*	*10.48am*	*2 jam 18 minit*
14.	*22/11/2022*	*8.35am*	*5 minit*
15.	*23/11/2022*	*9.25am*	*55 minit*
16.	*24/11/2022*	*10.38am*	*2 jam 8 minit*
17.	*25/11/2022*	*8.40am*	*10 minit*
18.	*30/11/2022*	*8.56am*	*26 minit*

Pertuduhan Kedua

Pada 2hb November 2022, anda telah dilaporkan tidak palm-in di mesin yang telah disediakan pihak Syarikat. Dimana rekod kedatangan anda pada tarikh tersebut hanya tercatit masa keluar iaitu 7.07pm sahaja.

Pertuduhan Ketiga

Pada 11hb November 2022 lebih kurang jam 11.59 sehingga 3.14pm anda telah dilaporkan keluar dari premis syarikat tanpa memberitahu atau memaklumkan kepada penyelia atau ketua jabatan anda. Anda telah tiada di tempat kerja anda selama 3 jam 15 minit.

Pertuduhan Keempat

Pada 23hb November 2022 lebih kurang jam 12.02 sehingga 2.17pm anda telah dilaporkan keluar dari kawasan premis syarikat tanpa memberitahu atau memaklumkan kepada penyelia atau ketua jabatan anda. Anda telah tiada di tempat kerja anda selama 2 jam 5 minit.

Pertuduhan Kelima

Pada 2hb Disember 2022 sekitar pukul 5.10pm sehingga 5.20pm, ketika anda dipanggil oleh pihak Jabatan Sumber Manusia di bilik mesyuarat 1, anda telah dilaporkan meninggikan suara kepada HR Eksekutif syarikat ketika beliau menyerahkan surat tunjuk sebab kepada anda. Anda dilaporkan menyebut perkataan "stupid" melebihi dua (2) kali sambil menunding-nunding jari ke arah beliau dengan nada yang kasar dan kuat. Tindakan seperti dinyatakan telah memalukan atau menjatuhkan air muka seseorang pekerja serta mengganggu gugat keharmonian industry di syarikat ini dimana tindakan tatatertib boleh diambil ke atas anda sekiranya terbukti anda melakukan salahlaku yang dinyatakan."

(f) The Domestic Inquiry ("DI") proceeded as scheduled on 05.01.2023. The Domestic Inquiry panel found the Claimant guilty of all the charges preferred against him;

(g) The Company duly considered the Domestic Inquiry panel's findings and took into account the Claimant's past misconducts which were similar in nature wherein he was duly punished by issuance of

numerous warning letter culminating into a final warning letter and an instance of two (2) weeks suspension. The Claimant was also issued with reminder letters and put through counselling for similar type of misconduct. The Company having considered all the facts and circumstances of the case including the numerous punishments meted out before for misconducts of similar nature came to the inevitable conclusion to dismiss the Claimant vide a letter dated 18.01.2023 and the dismissal to take effect from 19.01.2023;

(h) For ease of reference, the Claimant's past transgressions and the action taken are laid out in the form of a table below with documents in the Company's Bundle of Documents:

Date of Incident	**Incident Detail**	**Show Cause Date**	**Reply from Employee**	**Reply Date**	**HR Action**
September 2020	Lateness on Sept 2020	12/10/2020	Wife just gave birth, baby has Jaundice issue and also MCO roadblock	15/10/2020	REMINDER LETTER - Seen as Habitual Lateness due to past record.
17/12/2020	Missing at work station 11.20am till 4.30pm.	18/12/2020	Forgotten to inform superior	4/1/2021	WARNING 1
25/1/2021	Lateness on January 2021	Counselling Form	MCO roadblock.	-	Counselling by Superior
18/3/2021	Missing at work station and went out without notifying Superior and lateness for the month of Feb & March 21	30/3/2021	Deny the allegation and saying that he has done his job and he is free to be anywhere. Superior will	8/4/2021	DI - SUSPENSION 2 WEEKS

			look for him if they need him		
28/1/2022	Did not inform Superior on the reason of his absent early morning.	8/2/2022	Reason given sick and went to doctor late and have requested wife to contact superior. Not able to show proof.	14/2/2022	WARNING LETTER
January, February & March 2022	Lateness and failure to follow work schedule	5/4/2022	Medical reasons and clocking in error	11/4/2022	REMINDER LETTER 2
13-20 June 2022	Absents, lateness, unauthorised leaving, Failure to submit Medical certificate	21/6/2022	Various reasons as per the reply letter	13/7/2022	WARNING LETTER
August, September & October	Lateness & no Palm-in Aug, Sept & October 2022	13/10/2022	Many personal reason for his lateness	23/10/2022	**FINAL WARNING LETTER**

(i) The Company vide a letter dated 31.1.2023 rejected the Claimant's appeal and plea as too many chances were already given to the Claimant in the past and the Claimant wilfully refused to mend his ways; and

(j) It was the Company's contention that the Claimant was aware of four (4) of the allegations from 1.12.2022 onwards and fifth (5th) allegation from 15.12.2022 onwards. The Claimant also had eight (8) days to prepare for the Domestic Inquiry from 28.12.2022 when the notice was issued to 5.1.2023 when the Domestic Inquiry was scheduled. The

Claimant expressed no objection to the panel when that was put to the Claimant at the onset of the Domestic Inquiry by the Panel Chairman and the Claimant was represented by the Union.

THE CLAIMANT'S PLEADED CASE

[5] In his SOC, the Claimant pleaded, *inter alia*, as follows:

(a) The Claimant's job scopes in general are handling incoming and outgoing of finished goods and/ or raw material and managing stocks in external warehouses, monitoring loading and unloading of the goods and others;

(b) The Claimant has received bonuses and incentives from the Company several times for his commitment and performance;

(c) However, since 2015 the Company gave the Claimant extra task which was as Forklift Driver including loading and unloading pallets and goods to replace any Forklift Driver who was on leave where it was not within his job scopes as a Storekeeper;

(d) The Claimant averred that he had no experience or qualification in handling forklift before and as a result, he was under intense work pressure. The Claimant was also overburdened with his additional duties apart to concentrate on his actual duties as a Storekeeper;

(e) Due to overburdened with additional works, the Claimant's health was affected. The Claimant also always tired and unable to concentrate on his work; and

(f) The Claimant had responded to the show cause letters vide his letters dated 15.12.2022 and 18.12.2022.

[6] In his Rejoinder, the Claimant pleaded, *inter alia*, as follows:

(a) Claimant asserted that the Domestic Inquiry's decision, resulting in the Claimant's suspension in 2021, was unjustified. The said Inquiry was not conducted in accordance with the law, and the decision was made without proper evidence and testimony of the witness;

(b) The Claimant asserted that he was never informed about the job duties related with operating a forklift and the job advertisement exhibited differed from the one to which the Claimant had applied previously;

(c) The Claimant averred that the issues of overburden, poor health and difficulties in maintaining concentration at work have been brought up since the outset. However, the Company chose to ignore these issues and instead, attributed them to the Claimant as the cause of the problems; and

(d) Regarding the Company's allegation that the Claimant had called out the Human Resources Executive as "Stupid", the Claimant has

consistently denied this allegation from the outset. The Company's witness admitted that she only heard the word "stupid" but unsure to whom it was directed.

THE LAWS & ISSUES

[7] The function of the Industrial Court in dealing with dismissal cases had been clearly stated in the case of ***Milan Auto Sdn. Bhd. v Wong Seh Yen [1995] 4 CLJ 449*** wherein the Federal Court held that (page 450):

> "*[1] The function of the Industrial Court in dismissal cases on reference under s.20 is two-fold. It has to determine* ***whether the misconduct complained of by the employer has been established and secondly whether the proven misconduct constitutes just cause or excuse for the dismissal****…..*"

[8] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as enunciated by the Court of Appeal in the case of ***Telekom Malaysia Kawasan Utara v Krishnan Kutty Sanguni Nair & Anor. [2002] 3 CLJ 314***.

The Issues

[9] It was an undisputed fact that the Claimant had been terminated from the Company's employment with immediate effect on 19.01.2023. The material issues to be decided in this case are as follows:

(a) Whether the misconduct complained of by the Company has been established; and

(b) Whether the proven misconduct constitutes just cause or excuse for the dismissal of the Claimant.

EVALUATION OF EVIDENCE AND FINDINGS

[10] In this case, five allegations of misconduct, as detailed in "The Company's Pleaded Case" above, were made against the Claimant. See pages 37-38, COB-1.

[11] In cases involving dismissal on ground of misconduct, the burden is on the employer to prove that the employee is guilty of the allegation of misconduct and to establish the reasons for such dismissal. This was succinctly stated by the Learned Industrial Court Chairman in the case of ***Stamford Executive Centre v Puan Dharsini Ganesan [1986] 1 ILR 101*** as follows:

> "*16. It may further be emphasised here that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer. He must prove the workman guilty, and it is not the workman who must prove himself not guilty. This is so basic a principle of industrial jurisprudence that no employer is expected to come to this Court in ignorance of it.*"

[12] In ***Mohd Saufi Ahmad Rozali & Anor v Puspakom Sdn Bhd [2013] 2 ILR 144***, the Learned Chairman of the Industrial Court stated the following in respect to the standard of proof at pages 149-150:

> "***[6]*** *When an employer makes an accusation of misconduct against an employee and dismisses him on that ground, it is trite law that the employer bears the burden of proving the misconduct against the employee. However, it is my humble view that the standard of proof has seen some significant changes in the recent past. Prior to the Court of Appeal decision in Telekom Malaysia Kawasan Utara v Krishan Kutty Sangunai Nair & Anor [2003]3 CLJ 314, there were several approaches regarding the standard of proof, especially in cases involving misconduct, which was criminal in nature, known as criminal misconduct. On one end of the spectrum, the standard of proof was said to be beyond reasonable doubt and the other end of the spectrum, it was said to be on the balance of probabilities. However, in 2003 the Court of Appeal in the Telekom case [supra] had made it clear that standard of proof on the employer is on the balance of probabilities. The Court had also made it clear, how the Industrial Court should deal with criminal misconduct. The Court said that the Industrial Court cannot proceed like a criminal court applying strict rules of evidence and procedure, as it was not a criminal prosecution in respect of a criminal offence.* ***The standard that is required of the employer is that of a reasonable employer and whether there were "solid and sensible grounds" on which the employer could reasonably suspect the employee guilty of the misconduct. The other important point is that the Industrial Court cannot demand proof to its satisfaction and the Industrial Court has***

only to be satisfied that company was justified in coming to its conclusion. What is vital to note is that the employer has only to show that he had reasonable grounds to believe and did honestly believe that the employee was guilty of misconduct.

[7] Hence, even the standard of proof on the balance of probabilities may be too rigid a standard and the standard now is of reasonable belief. This standard has been reaffirmed by the Court of Appeal in the case of K.A. Sanduran Nehru Ratnam v I-Berhad [2007]1 CLJ 347. This case established that the test is not whether the employee did it but whether the employer acted reasonably in thinking the employee did it…….

[9] Hence, the burden of proof placed on the employer is not a heavy one. An employer does not have to prove that the offence was committed on a balance of probabilities, that is to say, to satisfy the tribunal of the likelihood that the offence was actually committed. The employer is only required to show that he had reasonable grounds for believing in the guilt of the employee. This is after all an employment dispute and not a criminal prosecution."

[Emphasis added]

[13] In the Claimant's Submission, the Claimant had alleged irregularities in the DI proceedings in that the DI was fundamentally defective and important finding was left out in the Inquiry Report.

[14] This Court had examined the minutes of DI tendered and found no serious defects thereof or breach of natural justice. In any event, it is trite law that the findings of a domestic inquiry are not binding upon the Industrial Court which rehears the matter afresh. However, the Court may consider the minutes of DI and the panel's findings as part of the evidence for the matter. The Court may also take into account the fact that a domestic inquiry had been held when determining whether the particular workman was justly dismissed. (See ***Hong Leong Equipment Sdn. Bhd. v Liew Fook Chuan & Another Appeal [1996] 1 MLJ 481; [1997] 1 CLJ 665***)

Whether the misconduct complained of by the Company has been established

[15] Guided by the above authorities, the Court will now examine whether the charges leveled against the Claimant have been established by the Company.

[16] From the evidence before this Court, the following facts are undisputed:

(a) The Claimant had been given a copy of the Company Rules (Issued 1995) ("the Company Rules") and he is aware of the contents therein. See pages 8-20, COB-2;

(b) The Claimant had undergone and successfully completed the Forklift Safety and Certification Training conducted by Eversafe Universal Sdn. Bhd. on 14.5.2018. See documents on Forklift Safety and Certification Training on 14.5.2018 and the assessment by the trainer at pages 20-25, COB-1; and

(c) The DI was attended by representatives from the National Union of Petroleum and Chemical Industry Workers.

Charge 1

[17] Charge 1 was in respect of the Claimant reporting to work late on 18 different occasions in a period of less than 2 months from 11.10.2022 to 30.11.2022.

[18] In the Claimant's 2nd Reply, the Claimant had categorized the table done up in the 1st Show Cause Letter (as detailed in the Company's Pleaded case above) into two parts, namely the highlighted (being eleven occasions) and non-highlighted parts (being seven occasions). Notably, the Claimant did not dispute he had gone to work late on these eighteen days.

(a) For eleven occasions on 11th, 14th, 17th, 19th, 27th, 31st of October and 17th, 21st, 23rd, 24th and 30th of November ("the Highlighted 11 Days"), the Claimant had alleged that "*majority of the dates have attachments and annual leave and clinical slip has been submitted to my superior*". Besides asking the Company to *"verify back with my superior"*, no evidence had been tendered in Court to substantiate such allegation.

(b) He had stated that he was not defending he wasn't late, but only particular seven days on 21st and 25th of October 2022 and 1st, 3rd, 15th, 22nd and 25th of November 2022 (the Non-highlighted 7 Days). He had said *"The reason of my lateness, is due to tiredness".* The

Claimant had alleged that because he was handling forklift, he was tired and hence late for work.

[19] In CLWS-1, the Claimant had testified in respect of all five Charges as follows:

"*Q9: How were you dismissed from the Company?*

A9: On 01.12.2022 and 15.12.2022, the Company had issued a Show Cause letter respectively dated 01.12.2022 and 15.12.2022 containing allegations of gross misconducts purportedly committed by me.

I was given seven (7) days to reply to the Show Cause Letter in which I replied vide my letter dated 18.12.2022 and 15.12.2022 whereby I explained in details the reasons as to why no disciplinary action ought to be taken against me, which among others were: -

a. Pertuduhan Pertama (for allegedly arriving late to the office and not adhering to the work schedule)

That on 11, 14 and 31 October 2022 I was late because I had to take my unwell son to the clinic before going to work.

On 17 and 27 October 2022 and 24 November 2022 I was late because I visited the panel clinic due to my own illness.

On 19 October 2022, I was late because I took my wife to the clinic

as she was unwell.

On 17 November 202a, I was late by 46 minutes due to a road blockage caused by flooding, which required me to take an alternative, longer route.

On 21 November 2022, I was late by 2 hours and 18 minutes because my motorcycle had a flat tire.

On 30 November 2022 I was 26 minutes late because I had to visit the clinic for a follow-up after being unwell and on sick leave on November 29, 2022.

I informed my superior of these instances of lateness and forwarded the relevant photo and documentation, including medical slips. I was late only on eight (8) specific days which were on 21st, 23rd, 25th of October 2022 and 01st, 03rd, 15th, 22nd and 25th of November 2022. However, these delays were unintentional and caused by fatigue and insufficient rest, as I had to take on additional duties as a forklift driver to cover for another driver who was on light duty and unable to drive.

b. *Pertuduhan Kedua (for allegedly failure to clock in)*

I was confused and forgot to clock in on 02.11.2022 due to fatigue, insufficient rest, and stress. The company can verify the time I

arrived at the office by checking the CCTV footage.

c. *Pertuduhan Ketiga dan Keempat (for allegedly being away from company premises)*

I admit that I was off the company premises on both dates. However, I used my lunch break from 12:00 p.m. to 1:00 p.m. to run urgent personal errands. As a result, I was absent for only 2 hours and 15 minutes on the 11.11.2022 and 1 hour 17 minutes on the 23.11.2022. I have also attached the Incoming and Outgoing Book as my evidence.

d. *Pertuduhan Keempat (for allegedly calling a human resources staff 'stupid' while pointing fingers at her in a harsh and loud manner)*

I deny this accusation because I did not specifically refer to the staff member or anyone else in such a manner.

Thereafter, the Company issued a Domestic Inquiry Notice vide letter dated 28.12.2022 containing the five (5) allegations of gross misconducts to be addressed during the Domestic Inquiry. However, during the Domestic Inquiry held on 05.01.2023, I was not giving the opportunity to prepare and present my case properly and that the panels of the Domestic Inquiry were not an independent panel. The Inquiry also was not recorded and I was

not allowed to record also. The unfair and unjust manner wherein the Domestic Inquiry was conducted had deprived me of any opportunity to defend or plead my case entirely.

Following that, the Company issued a Domestic Inquiry Result and Termination Notice vide letter dated 18.01.2023 and I was unfairly dismissed due to the unfair manner the Domestic Inquiry was conducted based on five (5) gross misconduct allegations which I was not given the opportunity to defend."

[20] The Claimant had further submitted in the Claimant's Submission and/or the Claimant's Reply as follows:

(a) pages 26 to 31 of CLB-1 were referred to in support of the Claimant's above contention with regard to Charge 1. These pages show some WhatsApp messages sent by the Claimant to the Claimant's immediate superior, Mr. Kunalan A/L Velayutan (COW-3);

(b) the Claimant had submitted his job application through a former employee of the Company, hence he cannot be deemed to have been bound by or to have acknowledged the JobStreet advertisement (See page 17, COB-1);

(c) the Claimant was overburdened with work, frequently required to perform forklift duties in addition to his normal storekeeper responsibilities; and

(d) the Claimant's occasional lateness was supported by explanations and documentary evidence, all of which were reasonable and excusable.

[21] In rebuttal, the Company had submitted in respect of the the Non-highlighted 7 Days as follows:

(a) the Claimant generally relied on tiredness and being forced to drive forklift when it was not his duty. The Company conclusively established that driving forklift when necessary was posted as part of the job description in the job street advertisement at page 14 of COB-1. To further substantiate this the Company had sent the Claimant for forklift handling training as can be seen from pages 20-25 of COB-1; and

(b) the issue of general tiredness is not acceptable as the Claimant did not adduce any evidence that he was made to work extra-long hours daily that caused this unusual tiredness. A brief perusal of the Claimant's attendance for the months of October and November 2022 at pages 35-36 of COB-1 showed the Claimant clocked out between 5.45pm and 6.30pm except for a few days in between. The Claimant also could not adduce any evidence that he had raised this issue of tiredness to his superior or Human Resources at any point whilst in service. As such the excuse of tiredness is merely an afterthought and a lame excuse.

[22] As for the Highlighted 11 Days at page 42 of COB-1, the Company had submitted that the Claimant essentially never obtained any prior approval to be late

or informed his superior about an impending lateness or as soon as possible after reporting in to work late.

(a) Notably, the Claimant literally conceded that he was indeed late as charged for those 11 days but claimed that he had informed his superior beforehand.

(b) His Superior, COW-3, gave direct unchallenged testimony that the claimant had never informed him beforehand or immediately after reporting to work late. COW-3's evidence in chief was as follows: -

"*Q10: From pages 26 to 31 of CLB-1 the Claimant is attempting to justify his tardiness under charge 1. Can you explain about these justifications for those days with more than 1 minute late?*

A10: (i) On 11.10.2022 he was late by 15 minutes and did not call to inform and only after I asked why he was late he gave the reason about his child being ill.

(ii) On 14.10.2022 he was late by 3 minutes to palm in but at 2.31pm he was again missing from work and the lorry was waiting for him. Only then he said he was late in the morning to avoid answering where he was at 2.31pm.

(iii) 17.10.2022 he was late by 9 minutes and there was just a picture of him sent at 9.59am with no explanation.

(iv) 19.10.2022 he was late 1 hour 27 minutes and messaged me at 8.30am that he is sending his wife"

[23] It was the Company's contention that it had also established through Teoh Swee Peng (Alice), the Human Resources Manager (COW-4) that the Claimant's constant tardiness was disrupting operations. COW-4 in her examination in chief stated as follows and it was never challenged:-

> "*Q29: What is the impact of the Claimant being constantly late and failing to inform his superior before the commencement of work of his absence?*
>
> *A29: His superior Mr. Kunalan said that the Claimant behaviour of constantly not being at work on time without any prior notification before the commencement of work time has caused a lot of difficulty in managing the store as loading and unloading will be severely impacted and it delays the lorries who are third party transporters. The challenges Kunalan faced was having need to rearrange the manpower to manage his work. There is also impact of handling product requisition from production which delays production.*"

[24] This Court finds it unacceptable that the Claimant who had been with the Company for almost eight years prior to his dismissal, was still unsure of his job functions in the Company and argued he had no knowledge of the job description of a storekeeper in the Company as advertised in JobStreet. Both parties in the instant case had testified that occasionally the Claimant had covered for forklift drivers who were on leave, something which the Claimant had been carrying out during his tenure with the Company. No issues or complaints whatsoever were raised by the Claimant to the Company pertaining to his having to drive forklift when necessary and required by the Company prior to the Claimant's 2nd Reply dated 18.12.2022. Neither was

there any plausible evidence tendered in Court to support the Claimant's allegation of his tiredness, fatigue and/or insufficient rest as a result of his having to drive the forklift occasionally. What was the nexus between the Claimant's driving of the forklift, his alleged tiredness, fatigue and/or insufficient rest and the Claimant's persistent lateness to work? The Court finds the Claimant's such purported allegation untenable.

[25] Furthermore, it is pertinent to note the following evidence tendered in Court, which rebuts the Claimant's purported allegation:

(a) the Claimant's Letter of Appointment dated 06.02.2015 found in both CLB-1 and COB-1 that contains clear provision on the Company's rights to instruct the Claimant to carry out such duties and job functions from time to time:

"DUTIES

The Company shall advise you on your job function. You will be required to carry out such duties and job functions as may be instructed from time to time by the Company and you may be required to be transferred from one department, office or to another company within our Group of Companies at the sole discretion of the Company."

(b) pages 20-25, COB-1 show that the Claimant had successfully completed the Forklift Safety & Certification Training on 14.05.2018, scoring the highest total marks for the written and practical driving assessment.

[26] During cross examination, the Claimant agreed that the Company Rules are applicable to him. The excerpts of Rules 3, 7 & 8 of the Company Rules are reproduced below for ease of reference:

> "***RULE 3***
>
> *HOURS OF WORK AND OVERTIME*
>
> *YOU MUST:*
>
> *i)* ***Observe the working hours*** *which are specified for your job.*
>
> *YOU MUST NOT:*
>
> *i)* ***Arrive late for work****.*
>
> *ii) Stop work before the normal finishing time.*
>
> ***iii) Leave your job during working hours without the permission of your supervisor.***
>
> *iv) Leave your place of work until relieved where you are employed on a continuous or semi-continuous shift.*
>
> *v)* ***Exceed the time limit granted for tea and meal breaks****.*
>
> ***COUNCSELLING/DISCIPLINARY ACTION WILL APPLY IF RULES ARE NOT FOLLOWED.***
>
> ***RULE 7***
>
> *ABSENCE THROUGH SICKNESS*
>
> *YOU MUST:*

i) *Contact your supervisor or manager* ***prior to your commencement time*** *if you are sick and cannot come to work.*

COUNSELLING/DISCIPLINARY ACTION WILL APPLY IF RULES ARE NOT FOLLOWED.

RULE 8

LEAVE OF ABSENCE AND HOLIDAYS

YOU MUST:

i) *Obtain the prior permission of your supervisor or manager before absenting yourself from work. Only if, in an emergency, this is not possible you must telephone, telegram or fax to your supervisor or manager immediately on the first day of absence and prior to your scheduled start time to give the reason, which must be supported by documented evidence.*"

[27] It is to be noted that the Claimant contended he had informed COW-3 about his impending lateness on the Highlighted 11 days by relying on the screenshots of the purported WhatsApp messages tendered at pages 26-31 of CLB-1, which did not show any relevant documentation, including medical certificates as alleged in the Claimant's Submission. To the contrary, messages tendered show that most of the time the Claimant had only notified COW-3 much later at the material time and in some instances, only after COW-3 had checked on his whereabout. In this regard, this Court cannot agree more with the Learned Chairman in the case of ***AHMAD SANI BIN ISMAIL v TEGAS LOGISTIK SDN BHD (AWARD NO.: 808 OF 2025)***, as

cited in the Company's Submission, who had said that such notifications do not amount to obtaining proper permission or approval from the employer: -

> "*[57] Be that as it may, merely informing the Company of his absenteeism and lateness in WhatsApp is insufficient, unless such a mode of communication is expressly permitted by the Company as a valid means of obtaining approval.*
>
> *[58] Lateness and absenteeism constitute absence from work, for which there must be a valid leave of absence. "Leave" means permission to be absent from work.*
>
> *[59] Accordingly, an employee is required to obtain express permission or prior approval from the employer or an authorised superior for any lateness or absence from work to be deemed lawful.* ***Leave of absence is not a right conferred upon the employee as a matter of course****.*
>
> *[60]* ***The Court takes cognizance that, with the convenience of modern communication tools such as WhatsApp, there has been a growing tendency among employees to merely send messages notifying their absence or lateness in the employer's work chat group or to their colleagues. However, in ordinary circumstances, such notifications do not amount to obtaining proper permission or approval from the employer****."*
>
> [Emphasis added]

[28] This Court rejects the Claimant's allegations and/or justifications in respect of Charge 1 as being improbable after weighing all oral and written evidence before it. This Court thus finds that Charge 1 has been established.

Charge 2

[29] The Claimant had admitted to this charge in the Claimant's 1st Reply, during cross-examination and the Claimant's Submission. The Claimant contended that this was due to confusion, fatigue, insufficient rest and stress. It was further contended that this was a genuine and isolated mistake with no element of misconduct or intention to defraud the Company.

[30] In addition, the Claimant had attempted to justify his omission to palm in by submitting in the Claimant's Submission, Rule 4 of the Company Rules does not provide that a mere failure to clock in constitutes a disciplinary offence, let alone one warranting dismissal.

[31] This Court is unable to agree with the above submission by the Claimant as Rule 3 of the Company Rules clearly stipulates that all employees "*must observe the working hours which are specified for their job*". How would the Company's management be able to monitor compliance with the working hours stipulated if employees do no palm in and out? This system is also useful to avoid any dispute by any employee with regard to his time for clocking in and out since under normal circumstances, he is the one who palms in and out personally.

[32] Be that as it may, Charge 2 had certainly been established as there was clear admission by the Claimant. In addition, the Company had produced evidence in the form of the attendance record at page 36 of COB-1.

Charges 3 & 4

[33] Charges 3 and 4 will be considered together in view of the similarity of the charges, both involved the Claimant taking extended lunch break exceeding the 45 minutes allocated.

[34] The Claimant had admitted that he had taken extended lunch break but attempted to justify his action by saying as follows:

> "*I admit that I was off the company premises on both dates. However, I used my lunch break from 12:00 p.m. to 1:00 p.m. to run urgent personal errands. As a result, I was absent for only 2 hours and 15 minutes on the 11.11.2022 and 1 hour 17 minutes on the 23.11.2022.*"

[35] The Claimant had again admitted to these charges but attempted to justify it by raising the need to carry out personal chores like banking. It is the Company's contention that the key consideration that needs to be addressed is that employees are generally allowed to take extended lunch break to carry out personal chores BUT prior approval must be obtained before doing so. Failure to get prior approval would then make this absence as an unauthorised absence. The Claimant conceded as follows during cross examination:-

"*Q: Ok. So, for my question, explain how you tabulated two hours 15 minutes and one hour 17 minutes respectively for those two dates, is you have informed your superior, and you have noted down in the logbook?*

A: Yes.

Q: Is there any evidence that you have informed your superior before the Court?

A: There's no evidence here."

[36] The Company further contented that the Claimant took extended lunch break but did not seek any permission from his superior before doing so. There is absolutely no evidence of the Claimant informing his superior. In the case of ***Samuel Raj Sivajothi v Tungsten Network Sdn Bhd [2019] 3 ILR 480*** submitted in the Company's Submission, it was held by the Learned Industrial Court Chairman as follows:-

"*Taking extended breaks during working hours without the prior permission of the employer is also a misconduct which warrants dismissal (**Jul Arshad v Sabah Forest Industries Sdn Bhd [2006] 3 ILR 1689** (Award No. 1415 of 2006)).*"

[37] A careful perusal of the Inquiry Report shows that the panel members had stated in Summary of Employee's case in respect of Charges 3 and 4 (page 71, COB-1) as follows:

Tuduhan 3 dan 4

"*Tuduhan 3 :* ***BERSALAH***

Didalam sesi soal jawab siasatan dalaman, tertuduh mengaku tidak memberitahu penyelia untuk keluar dari kawasan premis syarikat bagi menguruskan hal peribadi. Tertuduh juga telah masuk semula ke premis syarikat melangkaui masa rehat yang telah ditetapkan.

Tuduhan 4 ***BERSALAH***

Didalam sesi soal jawab siasatan dalaman, tertuduh mengaku tidak memberitahu penyelia untuk keluar dari kawasan premis syarikat bagi menguruskan hal peribadi. Tertuduh juga telah rnasuk semula ke premis syarikat melangkaui masa rehat yang telah ditetapkan."

[38] After considering, amongst others, the abovementioned evidence and relevant submissions by both parties, this Court finds that the Claimant had indeed exceeded the lunch hours allocated when he was out of the office from 11.59am to 3.14pm on 11.11.2022 and from 12.02pm to 2.17pm on 23.11.2022. In addition, no evidence was tendered to show prior leave and/or approval from COW-3 or the Company for the said time frame. Hence there was sufficient evidence to prove Charges 3 and 4 on a balance of probabilities.

Charge 5

[39] This charge concerns allegation that the Claimant had called one HR Executive "stupid" while pointing fingers at her in a harsh and loud manner.

[40] In the Claimant's 2nd Reply, he had did not deny uttering such word but had said "*I didn't use the accused word on the specific person as per your letter*".

[41] On the other hand, it was the Company's contention that the Claimant incredulously denied Mr. Kunalan (COW-3) being in the room but both COW-2 and COW-3 himself gave direct testimony that he was indeed there in the room at that moment. Notably the Claimant's Counsel did not challenge COW-3 with regards to him not being in the room. During the DI the Claimant posed a direct question to COW-4 as to who were the witnesses and En. Azman Mohd Daud, chairman of the DI panel (COW-4) stated it was COW-3 and Kamsiah (COW-1). The DI notes at page 64 of COB-1 below was reproduced in the Company's Submission in support of the Company's contention:-

> "*Claimant: Saya tidak cakap perkataan itu kepada specific person. Saya seorang yang educated dan tidak akan sekali-kali cakap perkataan itu kepada sesiapa. Siapa saksi itu?*
>
> *COW-4: Kunalan dan receptionist Kamsiah.*"

[42] COW-1, COW-2 and COW-3 had all testified in Court that there were three persons, including the Claimant, having meeting/discussion at the material time. In addition, the Claimant had also admitted to uttering the word "stupid" but denied that such word was directed at anyone during the DI (See page 66, COB-1). This was further confirmed by the DI panel that had observed in the Inquiry Report (page 72, COB-1) as follows:

"*Dalam sesi soal jawab siasatan dalaman, tertuduh mengaku menggunakan perkataan itu yang merujuk kepada 'stupid' telah digunakan. Pada situasi dan keadaan yang mana hanya kehadiran Penyelia tertuduh dan HR eksekutif bersama tertuduh, serta kenyataan saksi (Penyelia tertuduh) menyatakan dengan jelas perkataan itu ditujukan kepada HR eksekutif serta jari yang menunding kearah HR Eksekutif. Tertuduh bersalah dalam penggunaan perkataan 'stupid' dengan nada kasar dan kuat.*"

[43] The Company had further submitted that calling a fellow colleague stupid who is merely carrying out her duties is totally unacceptable and must be regarded as a serious misconduct. The Company's ***Rule 2 of Company Rules "General Conduct on Company Premises"*** at pages 9-10 of COB-2 prohibits the use of abusive language and such a misconduct can lead to dismissal. It was held in the case of ***Bakti Comintel Manufacturing Sdn Bhd v Ibrahim Abdullah [1997] 3 ILR 358 @ P. 360 (AWARD NO. 462 OF 1997)***, as follows:

"*Use of abusive language and threatening words is clearly an all subversive of discipline which warrant nothing less than the punishment of dismissal. See Syarikat Ghalee Khidmat Sdn Bhd v. Ramachandra Naidu A/L Suppiah [1985] 1 ILR 146a...*"

[44] Does the Company have reasonable grounds for believing in the guilt of the Claimant in respect of Charge 5? Based on the oral and documentary evidence before this Court, the answer is in the affirmative.

Whether the proven misconduct constitutes just cause or excuse for the dismissal of the Claimant.

[45] Having established the Claimant's misconduct, this Court will now consider if the proven misconduct constitutes just cause or excuse for the dismissal of the Claimant. As enunciated in the case of ***Sri Bayanaemas Road Feeder Services Sdn Bhd v Rohani Abd Rahman [2007] 3 ILR 582***, it is settled law that a company can take into account instances of similar past misconduct when deciding on the type of punishment for the subsequent same misconduct.

[46] The Company argued that it had duly considered the Domestic Inquiry panel's findings and took into account the Claimant's past acts of misconducts which are similar in nature wherein he was duly punished by issuance of numerous warning letter culminating into a final warning letter and an instance of two (2) week suspension. The Claimant was also issued with reminder letters and put through counselling for similar type of misconduct.

[47] The evidence before this Court clearly demonstrates the Claimant was habitually late and frequently absent from work without valid justification prior to his dismissal, for a period of more than two years from September 2020 until November 2022. As can be seen in the table tabulated by the Company and detailed in the Company's Pleaded Case above on the Claimant's past transgressions and the action take, the Company had issued repeated warnings, conducted counselling session, suspension for two weeks and eventually a final warning letter dated 04.11.2022 ("the Final Warning") (See page 75-116, COB-1).

[48] It is pertinent to note the Final Warning came with a clear indication of dismissal if the Claimant repeats the misconduct. The WhatsApp messages at page 116 of COB-1 show that the Claimant had indicated to COW-3 he had spoken to his Union about the Final Warning then. However, there is no evidence before the Court that the Claimant had requested the Union to put forth a trade dispute complaint to challenge any of those earlier warning letters and the Final Warning. In fact, the claimant had admitted during cross-examination in Court that he did not do so. It is apparent to the Court that the Claimant had been provided with multiple opportunities by the Company granting him more than sufficient to improve himself, as far as his punctuality to work and observance of break times during working hours in particular are concerned.

[49] This Court also takes cognizance of the last two paragraphs in the findings of the DI panel (page 72, COB-1), wherein the panel member had observed as follows:

> "*Hujah penutup*
>
> - *Pihak kesatuan (union) En Zahri Bin Nairon memohon untuk diberi peluang terakhir kepada tertuduh. En Zahri juga menegaskan kepada tertuduh bahawa kila bekerja kena ikut peraturan syarikat, bawa 'forklift' bukan alasan untuk datang iewat. Attendance kena jaga.*
>
> *Nota dapatan ahli panel*
>
> - *Tertuduh tidak menunjukkan sebarang rasa bersalah walaupun setelah siasatan daiaman dijalankan dan tertuduh mengaku akan*

kesalahan beliau (tiada permohonan maaf).

- *Tiada sebarang jaminan dari tertuduh untuk tidak mengulangi kesalahan-kesalahan beliau.*"

[50] Not only did the Claimant show no remorse, instead he seemed to have taken advantage of the indulgence given by the Company and continued with the similar acts of misconduct barely a month after the issuance of the Final Warning. Despite being fully aware, as a long serving employee, that obligation to report to work on time is a fundamental condition of his employment with the Company and the Company views this issue very seriously, the Claimant had failed to improve.

[51] This Court is also mindful of the Federal Court case of ***Norizan Bakar v Panzana Enterprise Sdn. Bhd. [2013] 4 ILR 477*** which has confirmed the applicability of the doctrine of proportionality by the Industrial Court as follows:

> "*… we are of the view that* ***the Industrial Court has the jurisdiction to decide that the dismissal was without just cause or excuse by using the doctrine of proportionality of punishment and also to decide whether the punishment of dismissal was too harsh in the circumstances*** *when ascertaining the award under Section 20(3) of the Industrial Relations Act 1967.*"
>
> [emphasis added]

[52] The Claimant's persistent lateness and/or absenteeism can disrupt the smooth operation of the store in the Company's factory and the functioning of the Company's administration and other operation. Further, the Company cannot be

expected to tolerate such repeated misconduct as it may set a precedent whereby other employees may also regard it acceptable to behave in a similar manner and hence may make it difficult for the Company to maintain discipline among its employees.

[53] The Claimant's behaviour cannot be accepted and condoned as such behaviour had breached the trust and confidence that the Company had in him as an employee of the Company. The punishment of dismissal is thus proportionate to the severity of the Claimant's misconduct. This Court finds no reason to disturb the Company's decision to terminate the Claimant's employment with the Company.

CONCLUSION

[54] Based on the totality of the evidence adduced by both parties as well as the submissions made without regard to technicalities and legal form as provided under section 30(5) of the Act, this Court holds that the punishment of dismissal was warranted and the Claimant's dismissal was with just cause or excuse.

[55] Accordingly, the Claimant's claim is hereby dismissed.

HANDED DOWN AND DATED THIS 17th DAY OF DECEMBER, 2025.

-signed-

(CHOW SIEW LIN)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
KUALA LUMPUR